

Court No. - 3

Case :- WRIT - C No. - 18040 of 2023

Petitioner :- Raj Kumar

Respondent :- State Of U.P. And 5 Others

Counsel for Petitioner :- Krishna Nand Yadav, Anand Prakash Yadav

Counsel for Respondent :- C.S.C., Rishu Mishra

Hon'ble Surya Prakash Kesarwani, J.

Hon'ble Anish Kumar Gupta, J.

Put up as **fresh on 29.05.2023.**

Order Date :- 25.5.2023

Shubham Arya

Court No. - 40

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Counsel for Petitioner :- Krishna Nand Yadav, Anand Prakash Yadav

Counsel for Respondent :- C.S.C., Rishu Mishra

Hon'ble Mahesh Chandra Tripathi, J.

Hon'ble Prashant Kumar, J.

1. Heard learned counsel for the petitioner; learned Standing Counsel for the State-respondents and Sri Rishu Mishra, learned counsel for the respondent no. 4/Electricity Department.
2. In view of the order, which is proposed to be passed today, notice need not go to the private respondent no. 6.
3. The present writ petition has been preferred for a mandamus directing the respondent no. 4 to provide domestic electricity connection to the petitioner, in accordance with law. Alternatively, prayer is made to direct the District Magistrate, Maharajganj to consider and decide the representation dated 26.4.2023 filed by the petitioner (Annexure No. 8 to the writ petition).
4. Learned counsel for petitioner submits that there is dispute for the right/title over the property in question, wherein, the petitioner is residing on the upper floor. He has applied for new electricity connection but till date his application is pending for consideration. Such situation impelled the petitioner to approach this Court by means of the present writ petition.
5. Learned counsel for the respondent no. 4 submits that the respondent no. 6, who is sister of the petitioner has filed an objection regarding new electricity connection, as such, the application for new electricity connection could not be decided.
6. We have occasion to peruse the record in question as well as the Electricity Supply Code, 2005. The Electricity Supply Code, 2005 is a self-contained Act and full-fledged mechanism provided therein to redress the grievance of the petitioner. We are also of the considered opinion that the petitioner has every right to get the new electricity connection in view of the provisions contained under Clause 4.4 (a) of the Electricity Supply Code, 2005, which reads as under.

"Processing of Application for Supply:

(a) Application for new connections, in prescribed form (Annexure 4.1) and complete in all respects and accompanied by the prescribed Registration-cum-processing fee, shall be filed in duplicate in the office, specified by the Licensee, along with -attested true copies of the following documents:

(i) Proof of ownership of the premises in the form of registered sale deed or partition deed or succession or heir ship certificate or deed of last will or Proof of occupancy such as valid power of attorney or latest rent paid receipt or valid lease deed or indemnity form as per Annexure 4.2. Order Copy of appropriate court, in case of litigation regarding ownership of the premises, has to be enclosed.

(ii) Approval / permission / NOC of the local authority, if required under any law /statute.

(iii) In case of a partnership firm, partnership deed.

(iv) In case of a Limited Company, Memorandum, articles of Association, Certificate of incorporation and list of Director's / certified addresses.

(v) Work completion and Test certificate, on the prescribed format (Annexure 4.4), given by the licensed electrical contractor can be submitted later but prior to commencement of supply.

(vi) Owner's consent for getting new supply connection. (Annexure 4.3) "

7. In view of the above, on consent and without expressing any opinion on the merits of the issue and considering the facts and circumstances of the case, this writ petition is **disposed of** leaving it open to the petitioner to move an appropriate application in the light of aforesaid provision within a week's time. In case any such application is being preferred, we hope and trust that the same would be looked into, examined and remedied strictly in accordance with law as expeditiously as possible and preferably within a period of six weeks from the date of production of a certified copy of the order.

Order Date :- 12.7.2023

A.K.Srivastava